

		issue a subpoena are a judge, court clerk, or an attorney at law who is an attorney of record. (Code Civ. Proc., § 1985(c).) Parties representing themselves who are not licensed to practice law are not authorized to issues subpoenas, and any subpoenas they attempt to issue are invalid. A subpoena however may be issued by the Clerk “signed and sealed but otherwise in blank to a party requesting it, who shall fill it in before service.” (Code Civ. Proc. § 1985(c). See also, Code Civ. Proc., § 2020.210(a) [“The clerk of the court in which the action is pending shall issue a deposition subpoena signed and sealed, but otherwise in blank, to a party requesting it, who shall fill it in before service”]; <i>McLeod v. Board of Pension Commissioners</i> (1970) 14 Cal.App.3d 23, 28 [“[w]hen a civil action is pending in the courts, issuance of an ordinary subpoena is a matter of statutory right and neither a clerk nor court has discretion to refuse such issuance (Citation), even though the subpoena may be subject to a motion to quash or suppress, after issuance.”].) Here, it appears that Plaintiff already obtained a signed and sealed subpoena from the Clerk. That subpoena is directed at “Custodian of Records, CLOUDFLARE INC” and the subpoena is attached to the motion at page 11. The subpoena, however, is not accompanied by a proof of service. As such, Plaintiff does not show that the subpoena has been served. In sum, it remains unclear what more Plaintiff seeks from this court, and accordingly, the court denies the motion. Clerk to give notice.
9	Lynch vs. Liberty Debt Solution, LLC	<u>Motion to Hold Judgment Debtor in Contempt</u> The court DENIES Judgment Creditors/Cross-Complainants PREFERRED FINANCE, LLC (fka LIBERTY DEBT SOLUTIONS, LLC) and BRIAN ROCHE’s motion to hold Cross-Defendant/Judgment Debtor THOMAS LYNCH (“Lynch”) in contempt of court.